

(Delay In Filing Appeal 53 Days) Dr ... vs Vijay Paliwal on 14 September, 2020

Author: Hima Kohli

Bench: Hima Kohli, Subramonium Prasad

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IN THE HIGH COURT OF DELHI AT NEW DELHI

MAT.APP.(F.C.) 49/2020 & CM 6097/2020 (Stay), CM 6099/2020

(delay in filing appeal 53 days)

DR SHALINI PALIWAL

..... Appellant

Through: Dr. Saif Mahmood with Mr. Vivek

Agarwal, Advocates and appellant in person.

versus

VIJAY PALIWAL

..... Respondent

Through: Mr. Atul Jain, Advocate with parents of
the deceased/respondent in person.

CORAM:

HON'BLE MS. JUSTICE HIMA KOHLI

HON'BLE MR. JUSTICE SUBRAMONIUM PRASAD

ORDER

% 14.09.2020 HEARD THROUGH VIDEO CONFERENCING CM 20626/2020 & CM 20627/2020
(Exemption) Allowed, subject to all just exceptions.

CM 20625/2020 (on behalf of the applicant/mother of the respondent(deceased))

1. The present application has been moved by the mother of the respondent (since deceased) praying inter alia for an early hearing in the appeal on the ground that her son, the respondent herein had met with a fatal accident on 05.07.2020 and has expired.

2. We may note that the present appeal has been filed by the appellant being aggrieved by the judgment dated 14.11.2019, passed by the learned Family Court allowing a petition filed by the respondent under Section 13(1), (1)(a) and (1)(b) of the Hindu Marriage Act, for seeking dissolution of marriage. There is no issue from the marriage of the parties, who had separated in the year 2015 and in the year 2016, the appellant had moved to Dubai for a job.

3. When the appeal was listed for admission on 14.02.2020, Dr. Mahmood, learned counsel for the appellant had stated in the course of arguments that his client would be ready and willing to negotiate a onetime settlement with the respondent and the other side was agreeable to the parties being referred to mediation. As a result, the parties were referred to the Delhi High Court Mediation and Conciliation Centre. Since the appellant is residing and working in Dubai and she was to travel

to Delhi for negotiating a settlement, the learned Mediator was requested to conduct the mediation on a day-to-day basis to facilitate the parties in arriving at a settlement.

4. The records reveal that a settlement was arrived at between the parties before the Delhi High Court Mediation & Conciliation Centre on 07.03.2020 but due to the intervening circumstances of the COVID-19 pandemic, the present appeal was adjourned en bloc along with other matters from time to time. As a result, the Settlement Agreement was not be examined or taken on record by this court. If listed in due course, the present appeal would have come up on 16.10.2020.

5. In the meantime, the present application came to be moved by the mother of the respondent, placing on record the unfortunate circumstances of the demise of her son. In view of the changed circumstances and the subsequent developments on account of the demise of the respondent, we had requested learned counsel for the appellant to reconsider the terms of settlement and obtain fresh instructions from his client.

6. Today, Dr. Mahmood is present in the hearing alongwith the appellant, who has logged in from Dubai. The parents of the respondent (deceased) have also logged in from Muzaffarpur, UP. The appellant has stated that on account of the intervening circumstances and the sad demise of the respondent, she has had a change of heart and will not press for the recovery of the settled amount, as recorded in the Settlement Agreement dated 07.03.2020 by making a claim on the Estate of the deceased respondent. However, the mother of the respondent is still willing to abide by the Settlement Agreement or any lesser amount that the appellant would be willing to receive.

7. It has been agreed by the parties that the applicant/mother will pay a sum of Rs. 30 lakhs to the appellant in full and final settlement of all her claims against the deceased respondent, his Estate, the applicant/mother and his family members.

8. It has also been agreed by the parties that they shall abide by the remaining terms of the Settlement Agreement as recorded in para 8 except for sub-para (c) and (d). In other words, the appellant shall be at liberty to operate the locker as mentioned in para 8(e) and remove the articles lying therein. She shall also be entitled to approach the concerned bank for surrendering the locker and getting the FDR which is in her name, released.

9. Learned counsel for the applicant requests that the applicant may be given a reasonable time of two weeks to deposit the sum of Rs. 30 lakhs in the Registry.

10. It is directed that the applicant shall deposit a sum of Rs. 30 lakhs in the Registry within two weeks from today. In the meantime, the appellant shall file an affidavit undertaking inter alia that she will not claim any right, title or interest on the Estate of the deceased respondent or sue the applicant and/or the members of the family of the deceased respondent claiming any amount from them or his estate.

11. Learned counsel for the appellant states that the appellant has already taken steps to move an application before the court of the learned CJM Court, Agra for withdrawal of a petition filed by her

and the order that may be passed by the learned CJM, shall be filed along with the affidavit. The affidavit shall be filed by the appellant at least three days before the next date of hearing.

12. List on 21.10.2020, to await compliance.

HIMA KOHLI, J SUBRAMONIUM PRASAD, J SEPTEMBER 14, 2020 hsk/rkb